

**LOCAL LAWS
OF
THE CITY OF NEW YORK
FOR THE YEAR 2021**

No. 126

Introduced by Council Members Cornegy, Levine, Gennaro and Louis (by request of the Mayor).

A LOCAL LAW

To amend the administrative code of the city of New York, the New York city plumbing code, the New York city building code, the New York city mechanical code and the New York city fuel gas code in relation to bringing such codes and related provisions of law up to date with the 2015 editions of the international building, mechanical, fuel gas and plumbing codes, with differences that reflect the unique character of the city, clarifying and updating administration and enforcement of such codes and the 1968 code and repealing chapters 2 and 35, appendices K and M, section N102 of appendix N, appendices P and Q, and section R103.3 figures 1A and 1B of appendix R of the New York city building code, chapter 15 and appendix A of the New York city mechanical code and chapter 8 of the New York city fuel gas code in relation thereto

Be it enacted by the Council as follows:

Section 1. Legislative intent. This local law implements sections 28-601.1, 28-701.1, 28-801.1 and 28-901.1 of the administrative code, which require regular updates of the New York city plumbing code, the New York city building code, the New York city mechanical code and the New York city fuel gas code to reflect changes in the International Plumbing, Building, Mechanical and Fuel Gas Codes. These amendments will bring the New York city codes up to date with the 2015 editions of the International Plumbing, Building, Mechanical and Fuel Gas Codes published by the International Code Council, with differences to accommodate the unique nature of construction in the City. The local law is divided into parts A through E. Part A contains amendments to chapters 1 through 5 of title 28 of the administrative code in separately numbered sections within part A. Chapters 1 through 5 contain general provisions governing administration and enforcement of all such

LETTER OF COMPLETION. A document issued by the department indicating that permitted work has been completed, including satisfactory final inspection in accordance with this code. A letter of completion is issued only in circumstances where a certificate of occupancy is not required upon completion of the permitted work.

LIMITED ALTERATION APPLICATION. Application for limited oil-burning appliance alterations, limited plumbing alterations, limited sprinkler alterations and limited standpipe alterations submitted pursuant to exception 1 of section 28-104.6. Such work shall not include any associated work that would otherwise require an alteration permit including, but not limited to, any construction of fire rated partitions and enclosures.

Category 1 work shall be limited to a new installation into an existing building or system. The utilization of this category shall be limited by an annual monetary cap.

Category 2 work shall include any existing system or component that is replaced, repaired or altered. This category shall not be limited by a monetary cap.

LIMITED OIL-BURNING ~~[BOILER]~~ APPLIANCE ALTERATIONS. An alteration, installation, replacement or repair to an ~~[oil burner/boiler system]~~ oil-burning appliance that is limited in scope, falling into one of the following categories ~~[:]~~. Any construction or alteration to fire-rated partitions or enclosures, with the exception of through-penetrations that are firestopped, shall require a separate application filed with the department.

Category 1. An ~~[alteration]~~ addition to an ~~[oil burner/boiler system]~~ existing oil-burning appliance where the total cost of the proposed category 1 work in the building does not exceed ~~[thirty-five] [fifty thousand dollars]~~ \$50,000 in any 12-month period and where the proposed work is limited to the ~~[replacement]~~ installation of:

1. oil equipment ~~[or]~~ ,
2. oil-fired appliances, located within the same enclosure or room as the existing oil-burning appliance,
3. unit heaters, or
4. oil piping including no more than two above-ground oil tanks each with a capacity of no more than 330 gallons (1250 L) ~~[or less capacity provided the replacement]~~ provided such oil tanks also comply with the capacity limits established in section 1305.11 of the New York city mechanical code. The newly installed tanks shall have a UL listing, ~~[or labeling]~~ be labeled or meet the alternative tank design and construction standards contained in section 1305.14 of the New York city mechanical code.

Category 2. An alteration ~~[to]~~ , repair or replacement of an ~~[oil burner/boiler system]~~ existing oil-burning appliance that is not subject to cost or duration limitations and that is limited to the following:

1. Replacement of oil burners, oil-burning ~~[boilers]~~ appliances or water ~~[heater with]~~ heaters in which the heat input ~~[of 4]~~ per appliance does not exceed 3 million Btu/h ([293] 879 kW) ~~[or less].~~
- [2. Replacement of oil burners with heat input of 2.8 million Btu/h (821 kW) or less.]

- ~~[3.]~~ 2. Relocation of an oil burner or oil-burning ~~[boiler]~~ appliance or water heater within the same ~~[,unaltered fire-rated]~~ enclosure or room.
- ~~[4.]~~ 3. Placement of a temporary department of buildings registered oil fired mobile boiler and corresponding fuel oil storage tank with associated piping at a site for emergency heating.
- 4. Placement of a temporary fuel oil storage tank with a capacity of 5,000 gallons (18 927 L) or less at a site for emergency use and connected to an existing oil-burning appliance.
- 5. Repair, replacement or relocation of oil equipment, appliances or oil piping including two above-ground oil tanks with 330 gallons (1250 L) provided such oil tanks also comply with the capacity limitations of section 1305.11 of the New York city mechanical code. The replacement tanks shall have a UL listing or labeling or meet the alternative tank design and construction standards contained in section 1305.14 of the New York city mechanical code. Any such relocation shall be only within the same enclosure or room.

LIMITED PLUMBING ALTERATIONS. An installation, replacement, repair or alteration to a plumbing or fuel gas piping system, including fixtures and appliances, that is limited in scope, falling into one of the following categories:

Category 1. An ~~[alteration]~~ addition to [a] an existing plumbing or fuel gas piping system or service where the total cost of the proposed Category 1 work in the building does not exceed ~~[thirty five] [thousand dollars]~~ \$50,000 in any 12-month period and where the proposed work is limited to the following:

- 1. The addition of not more than ~~[5]~~ five plumbing fixtures or fixture connections in a building within any 12-month period, including any associated plumbing necessary to serve such additional fixtures or fixture connections;
- 2. The installation of new ~~[plumbing or]~~ fuel gas piping ~~[,excluding work in Category 2]~~ in conjunction with the addition of not more than five gas appliances or six unit heaters, limited to residential gas barbecue, Category 1 vented hot water heater, gas infrared heater, gas light, gas oil burner pilot, gas pool heater in conjunction with an R-3 occupancy group, one commercial gas appliance and gas unit heater, including any associated fuel gas piping necessary to serve such additional appliances;
- 3. The installation of up to five new sprinkler heads off of an existing domestic water system within any 12-month period;
- ~~[4. Rearrangement of not more than 20 sprinkler heads in areas classified in light hazard occupancy, as such term is defined in NFPA 13 as amended by appendix Q of the New York city building code, provided such areas are already sprinklered and such areas will remain in such occupancy, and provided further that all such sprinkler heads are off of a domestic water system;]~~
- ~~[5. Rearrangement of not more than 20 sprinkler heads in restaurant service areas classified in Group 1 ordinary hazard occupancy, as such term is defined by NFPA 13 as amended by appendix Q of the New York city building code, provided such areas are already sprinklered and such areas will remain in such occupancy, and provided further that all such sprinkler heads are off of a domestic water system;]~~